

R023322-112623 - Public Records Request

Message History (13)

← On 12/11/2023 8:39:09 PM, Matthew Davis wrote:

TO: "PASCOCOUNTYSHERIFF Support"[pascocountysheriff@govqa.us]

I never got a invoice for the video footage evidence that was used against me in a case that is now closed. It is my 6th amendment right to see all evidence that was used against me in court. Please send me this video footage from both angles it was taken from. Thank you for your time.

On Mon, Dec 11, 2023, 8:45 AM PASCOCOUNTYSHERIFF Support wrote:

✉ On 12/11/2023 8:45:08 AM, PASCOCOUNTYSHERIFF Support wrote:

Subject: [Records Center] Public Records Request :: R023322-112623

Body:



RE: PUBLIC RECORDS REQUEST submitted on November 26, 2023, Reference # R023322-112623

Dear Mr Matthew Davis,

This is a notification to advise that your records request is being closed due to failure to pay the deposit within the ten (10) day time frame after the invoice was sent. In addition, no communication has been received to notify us that you are revising your request.

Request Details:

Reference Number : R023322-112623

Description of records requested: "Complete Discovery for cases:

2021CF001143CFAXES

2022CF003171CFAXES - Please include home security video footage evidence that was uploaded to Evidence website"

Requested on: November 26, 2023

Sincerely,

The Pasco County Sheriff's Office Records Unit

← On 11/30/2023 4:24:09 PM, Matthew Davis wrote:

TO: "PASCOCOUNTYSHERIFF Support"[pascocountysheriff@govqa.us]

119.071 General exemptions from inspection or copying of public records.—(1) AGENCY ADMINISTRATION.—(a) Examination questions and answer sheets of examinations administered by a governmental agency for the purpose of licensure, certification, or employment are exempt from s. 119.07(1) and s. 24(a), Art. I of the State Constitution. A person who has taken such an examination has the right to review his or her own completed examination.(b)1. For purposes of this paragraph, “competitive solicitation” means the process of requesting and receiving sealed bids, proposals, or replies in accordance with the terms of a competitive process, regardless of the method of procurement.2. Sealed bids, proposals, or replies received by an agency pursuant to a competitive solicitation are exempt from s. 119.07(1) and s. 24(a), Art. I of the State Constitution until such time as the agency provides notice of an intended decision or until 30 days after opening the bids, proposals, or final replies, whichever is earlier.3. If an agency rejects all bids, proposals, or replies submitted in response to a competitive solicitation and the agency concurrently provides notice of its intent to reissue the competitive solicitation, the rejected bids, proposals, or replies remain exempt from s. 119.07(1) and s. 24(a), Art. I of the State Constitution until such time as the agency provides notice of an intended decision concerning the reissued competitive solicitation or until the agency withdraws the reissued competitive solicitation. A bid, proposal, or reply is not exempt for longer than 12 months after the initial agency notice rejecting all bids, proposals, or replies.(c) Any financial statement that an agency requires a prospective bidder to submit

No where does it say I can't request video EVIDENCE that was used in my court case that is now resolved. I will file a FOIA and report this constitutional violation of my sixth Amendment Right to know all evidence held against me to the federal government. Thank you for your time and it all in writing.

Matthew A DavisPasco County Public Works Emp# 12403

On Thu, Nov 30, 2023, 4:10 PM PASCOCOUNTYSHERIFF Support wrote:

✉ On 11/30/2023 4:10:05 PM, PASCOCOUNTYSHERIFF Support wrote:

Subject: [Records Center] Public Records Request :: R023322-112623

Body:

Good afternoon,

As stated previously, surveillance videos, including home surveillance videos, are not public record under Florida Statute 119.071(3)(a). We will provide you with what is public under Florida Statute of the Body Worn Camera relating to the case once payment is received. If you are not wanting the Body Worn Camera videos, please advise and we will withdraw your request. Please let me know if you have any further questions.

Thank you,
Emiko Sota
Public Records Supervisor

← On 11/30/2023 3:19:12 PM, Matthew Davis wrote:

FS119.071(3)(a) does not apply to this situation because there is no bidding on any public works jobs. I'm looking for a copy of the home surveillance video that was uploaded to "Evidence" and used against me in a case that is now resolved and closed with all sentencing completed.

As per FS119.071(3)(d) I can get a copy of it for my personal records.
Thank you for your time.

Matthew A Davis
Pasco County Public Works Emp#12403

✉ On 11/29/2023 8:27:13 AM, PASCOCOUNTYSHERIFF Support wrote:

Subject: [Records Center] Public Records Request :: R023322-112623

Body:



RE: PUBLIC RECORDS REQUEST submitted on November 26, 2023., Reference # R023322-112623.

Dear Mr Matthew Davis,

The Pasco Sheriff's Office received a public information request from you on November 26, 2023 for the following:

"Complete Discovery for cases:

2021CF001143CFAXES

2022CF003171CFAXES - Please include home security video footage evidence that was uploaded to Evidence website"

The Pasco Sheriff's Office reviewed your request and determined that the records requested are exempt from disclosure under F.S. 119.07 for the following reasons:

Surveillance Videos - FS 119.071(3)(a)

As previously stated, Surveillance footage is exempt from public disclosure in the State of Florida under Florida State Statute.

Sincerely,

The Pasco County Sheriff's Office Records Unit

← On 11/28/2023 4:42:33 PM, Matthew Davis wrote:

I DO NOT WANT THE BWC FOOTAGE. I WOULD LIKE THE HOME SECURITY VIDEO FOOTAGE OF THE INCIDENT THAT TOOK PLACE ON JULY 29 2022 ON HOWARD AVE. THAT WAS UPLOADED TO THE EVIDENCE SITE OF ME MATTHEW AARON DAVIS (PASCO COUNTY EMPLOYEE #12403) BEING SHOT TWICE BY A 3X FELON WITH A GUN AND THE INVESTIGATIVE REPORTS THAT PLACED CHARGES ON ME FOR 2 COUNTS OF AGGRAVATED ASSAULT FOR SAID INCIDENT.

✉ On 11/27/2023 12:22:06 PM, PASCOCOUNTYSHERIFF Support wrote:

Subject: [Records Center] Public Records Request :: R023322-112623

Body:

RE: PUBLIC RECORDS REQUEST submitted on November 26, 2023, Reference # R023322-112623

Dear Mr Matthew Davis,

The Pasco Sheriff's Office received a public information request from you on November 26, 2023 for the following:

“Complete Discovery for cases:

2021CF001143CFAXES

2022CF003171CFAXES - Please include home security video footage evidence that was uploaded to Evidence website”

I am contacting you to provide you a good-faith estimate of costs associated with your public records request, and advise that we require a deposit of 50% of the estimate in order for us to begin responding to your request. Based upon the nature of your request, there are a substantial number of potentially responsive records. Each document will need to be reviewed to determine if it is a public record, if it is responsive, and whether any statutory redactions are required. Our good-faith estimate of the costs associated with this request is \$434.91, please see the invoice for a complete breakdown of costs. We will require a 50% deposit in the amount of \$217.45.

You may pay via the portal with a debit or credit card. If you would like to pay by a cashier's check or money order, please make it payable to the Pasco Sheriff's Office and add the associated Reference # R023322-112623. Upon receipt of the deposit, we will process your request and contact you upon its completion with a final invoice amount, which is based on actual time and/or fees. If it is less than your deposit amount, you will be issued a refund for the difference. If it is more, you will be required to pay the outstanding balance difference before the records will be released to you.

Please let me know if you will accept these estimated costs. If you do not respond to this email within 10 business days after the estimate is sent, your request will be deemed withdrawn, unless you have advised the Pasco Sheriff's Office that you will accept and agree to pay the estimated cost or modify your request in response to the cost estimate.

If you wish to mail in your payment, please mail it directly to the address below and be sure to include the Reference # R023322-112623 on the check or a copy of the estimate.

Pasco Sheriff's Office

Finance Department - GovQA

8700 Citizens Drive

New Port Richey, FL 34654

Please advise how you would like to proceed.

Please be aware this does not include any surveillance footage, that is exempt from disclosure under Florida State Statute. Please see attached BWC Search Result for a break down of the BWC footage.

Sincerely,

The Pasco County Sheriff's Office Records Unit

✉ On 11/27/2023 12:09:59 PM, PASCOCOUNTYSHERIFF Support wrote:

Attachments: [INV23-R023322-1.pdf](#)

Subject: INVOICE - PUBLIC RECORDS REQUEST :: R023322-112623

Body:



RE: PUBLIC RECORDS REQUEST of November 26, 2023, Reference # R023322-112623.

Dear Mr Matthew Davis,

Your invoice is ready. Please login to the [Pasco Sheriff's Office Public Records Center](#) to make an online payment.

If you wish to send a cashier's check or money order please make to the Pasco Sheriff's Office, with "Final Payment PRR No. R023322-112623" written in the memo section.

You can also make a check or money order payable to: Pasco Sheriff's Office

ATTN: Finance Department

20101 Central Blvd.

Land O'Lakes, FL 34637

Sincerely,

Jessica Joyner

Public Records Specilaist

Public Records Unit

To monitor the progress or update this request please log into the [Public Records Center](#)



← On 11/27/2023 11:42:16 AM, Matthew Davis wrote:

TO: "PASCOCOUNTYSHERIFF Support"[pascocountysheriff@govqa.us]

My apologies for the misunderstanding. I am requesting the investigative reports and video evidence for these two court cases that have already been resolved in a court law. Thank you for your time

Matthew A. Davis

On Mon, Nov 27, 2023, 10:26 AM PASCOCOUNTYSHERIFF Support wrote:

✉ On 11/27/2023 10:26:13 AM, PASCOCOUNTYSHERIFF Support wrote:

Subject: [Records Center] Public Records Request :: R023322-112623

Body:

RE: PUBLIC RECORDS REQUEST submitted on November 26, 2023, Reference # R023322-112623

Dear Mr Matthew Davis,

The Pasco Sheriff's Office received a public information request from you on November 26, 2023 for the following records:

“Complete Discovery for cases:

2021CF001143CFAXES

2022CF003171CFAXES - Please include home security video footage evidence that was uploaded to Evidence website”

Please clarify or narrow your request by providing us the following information in an effort to assist in locating the requested records.

If this request is for Discovery for court trial, please upload the Answer to Demand and the Notice of Appearance.

If this request is not for Discovery for a court trial, please clarify what you mean by "discovery". Are you looking for everything related to the two cases to include: Reports, BWC, photos, and other miscellaneous documents.

If you would like for the Pasco Sheriff's Office to proceed with your public information request, please provide clarifications within fourteen (14) days from 11/27/2023. Otherwise, the Pasco Sheriff's Office will consider your request withdrawn.

You may provide a response to the Pasco Sheriff's Office by responding to this email.

Upon receipt of your clarification, the Pasco Sheriff's Office will further process your public records request, as required by law, including providing you with an estimate of costs associated with producing the requested records.

Thank you for your attention.

Sincerely,

The Pasco County Sheriff's Office Records Unit

✉ On 11/26/2023 12:08:38 PM, PASCOCOUNTYSHERIFF Support wrote:



RE: PUBLIC RECORDS REQUEST of November 26, 2023., Reference # R023322-112623.

Dear Mr Matthew Davis,

The Pasco Sheriff's Office is in receipt of your public information request dated November 26, 2023 for the below records:

"Complete Discovery for cases:

2021CF001143CFAXES

2022CF003171CFAXES - Please include home security video footage evidence that was uploaded to Evidence website"

In order to process your request in a timely manner, please ensure that you respond to all correspondence within 10 business days, or the request will be considered withdrawn. Pursuant to F.S. 119, fees may apply.

Sincerely,

Pasco County Sheriff's Office

 On 11/26/2023 12:08:36 PM, Matthew Davis wrote:

Request Created on Public Portal